

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index # 1693/16
Date of filing:

-----X
ALISIA CHARTER and MARC AURELUS,

Plaintiffs designate
Kings County as the
place of trial

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER STEPHEN
ANDOLINA, POLICE OFFICER GRASSO,
POLICE SERGEANT RIOS, POLICE SERGEANT
MICHAEL LINDSLEY, JOHN DOES – Police
Officers as yet unidentified, REECE PYANKAROO
And JOHN DOE, fictitious name intended for the
driver of the motor vehicle,

Basis of the venue is
Location of accident

Defendants.

SUMMONS

Plaintiffs reside at:
110-47 Union Haul Street
Jamaica, NY 11433
County of Queens

-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

PLAINTIFF'S ATTORNEYS:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

THE NEW YORK CITY POLICE
DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER STEPHEN ANDOLINA
69th Precinct
9720 Foster Avenue
Brooklyn, New York 11236

*(Defendants' Addresses continued on next
page)*

FILED
KINGS COUNTY CLERK
2016 FEB 11 PM 4:31

DEFENDANTS' ADDRESSES:

POLICE SERGEANT RIOS

69th Precinct

9720 Foster Avenue

Brooklyn, New York 11236

POLICE SERGEANT MICHAEL LINDSLEY

69th Precinct

9720 Foster Avenue

Brooklyn, New York 11236

REECE PYANKAROO

139 Washington Street, Apt. 204

Binghamton, New York

Dated: Brooklyn, New York

February 3, 2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALISIA CHARTER and MARC AURELUS,

Index No.:

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER STEPHEN
ANDOLINA, POLICE OFFICER GRASSO,
POLICE SERGEANT RIOS, POLICE SERGEANT
MICHAEL LINDSLEY, JOHN DOES – Police
Officers as yet unidentified, REECE PYANKAROO
and JOHN DOE, fictitious name intended for the
driver of the motor vehicle,

Defendants.

-----X

Plaintiffs by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF ALISIA CHARTER**

1. That at all times hereinafter mentioned, plaintiffs were and still are residents of the County of Queens, City and State of New York.
2. That at all times hereinafter mentioned, defendant, REECE PYANKAROO, was and still is a resident of the County of Broome and State of New York.
3. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

4. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

5. That prior hereto on June 19, 2015, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. That on October 30, 2015, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

7. That on April 12, 2015, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

8. That on April 12, 2015, and at all times hereinafter mentioned and upon Information and belief, the plaintiff, ALISIA CHARTER, was lawfully present at or near the premises known as the 69th Precinct of the New York City Police Department located at 9720 Foster Avenue, County of Kings, City and State of New York.

9. That on April 12, 2015, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER STEPHEN ANDOLINA,

POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT

MICHAEL LINDSLEY and JOHN DOES – Police Officers as yet unidentified, were

working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they falsely arrested and confined the plaintiff, ALISIA CHARTER.

10. That on April 12, 2015, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

11. That as a result of the aforesaid false arrest and confinement, plaintiff, ALISIA CHARTER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

12. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF ALISIA CHARTER**

13. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "12" inclusive with the same force and effect as if more fully set forth at length herein.

14. That on April 12, 2015, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY and JOHN DOES -Police Officers as yet unidentified, were acting within the

scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

15. That defendants, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY and JOHN DOES -Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

16. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING
AND RETENTION ON BEHALF OF ALISIA CHARTER**

17. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "16" inclusive with the same force and effect as if more fully set forth at length herein.

18. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY and JOHN DOES -Police Officers as yet unidentified, who falsely arrested and violated the civil rights of the plaintiff, ALISIA CHARTER.

19. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and Improper conduct of the defendants, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY and JOHN DOES -Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

20. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION ON BEHALF OF ALISIA CHARTER

21. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "20" inclusive with the same force and effect as if more fully set forth at length herein.

22. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY and JOHN DOES -Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff ALISIA CHARTER, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

23. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE

SERGEANT MICHAEL LINDSLEY and JOHN DOES -Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, ALISIA CHARTER of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

24. The defendants had deprived the plaintiff by their actions of her civil rights as guaranteed by statute.

25. That the false arrest and imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

26. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY and JOHN DOES -Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

27. That the defendants' actions were not privileged or immune.

28. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY and JOHN DOES -Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of her civil rights.

29. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts

**AS AND FOR AN FIFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ALISIA CHARTER**

30. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "29" inclusive with the same force and effect as if more fully set forth at length herein.

31. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

32. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY and JOHN DOES - Police Officers as yet unidentified, herein-above alleged.

33. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION
FOR NEGLIGENCE ON BEHALF OF ALISIA CHARTER**

34. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.

35. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, was the owner of a 1999 Nissan motor vehicle bearing New York State license plate number GFP1011.

36. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, was the owner of a 1999 Nissan motor vehicle bearing vehicle identification number JN1CA21D8XT218464.

37. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, operated the aforesaid motor vehicle.

38. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, controlled the aforesaid motor vehicle.

39. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, managed the aforesaid motor vehicle.

40. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, maintained the aforesaid motor vehicle.

41. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, serviced the aforesaid motor vehicle.

42. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKARRO, repaired the aforesaid motor vehicle.

43. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE, was the operator of a 1999 Nissan motor vehicle bearing New York State license plate number GFP1011.

44. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE, was the operator of a 1999 Nissan motor vehicle bearing vehicle identification number JN1CA21D8XT218464.

45. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE operated the aforesaid motor vehicle.

46. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE, controlled the aforesaid motor vehicle.

47. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE, managed the aforesaid motor vehicle.

48. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE, maintained the aforesaid motor vehicle.

49. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE, serviced the aforesaid motor vehicle.

50. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE, repaired the aforesaid motor vehicle.

51. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE, operated the aforesaid motor vehicle with the knowledge of the defendant-owner.

52. That on April 12, 2015, and at all times hereinafter mentioned, defendant, JOHN DOE, operated the aforesaid motor vehicle with the consent of the defendant-owner.

53. That on April 12, 2015, and all times hereinafter mentioned, defendant, JOHN DOE, operated the aforesaid motor vehicle with the permission of the defendant-owner.

54. That on April 12, 2015, and at all times hereinafter mentioned, at or near the intersection Rockaway Parkway and Glenwood Road, County of Kings, City and State of New York, was and still is a public roadway used extensively by the public in general.

55. That on April 12, 2015, and at all times hereinafter mentioned, plaintiff, ALISIA CHARTER, was a lawful pedestrian at the aforementioned location.

56. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, came into contact with plaintiff at the abovementioned location, and left the scene of the accident.

56. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, violently struck the plaintiff at the abovementioned location, and left the scene of the accident.

57. That the above stated occurrence and the results thereof were in no way due to any negligence on the part of the plaintiff contributing thereto, but was caused by the negligence of the defendants, in the ownership, operation, management, maintenance and control of their motor vehicle; in operating same without due regard to the rights and safety of the plaintiff; in operating their motor vehicle in a manner which unreasonably endangered the plaintiff; in failing to properly steer, guide, manage and control their vehicle; in operating same at a rate of speed greater than was reasonable and proper at the time and place of the occurrence; in failing to apply the brakes or slow down or stop in such a manner as would have prevented the occurrence; in failing to have made adequate and timely observation of and response to conditions; in failing to observe signs and signals prevailing at the time and place of the occurrence; in failing to keep a proper look-out when controlling their vehicle; in failing to properly maintain their vehicle according to law; in

failing to give adequate and timely signal, notice or warning; in operating their motor vehicle in violation of the traffic rules, regulations, statutes and ordinances in such cases made and provided; and in being otherwise careless, reckless and negligent in the ownership, maintenance, operation and control of their motor vehicle.

58. That by reason of the foregoing and the negligence of the said defendants, his plaintiff sustained serious, severe, and permanent injuries to her limbs and body, still suffers and will continue to suffer for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled and so remained for a considerable length of time.

59. That by reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the plaintiff sustained serious injuries as defined in the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in said Insurance Law.

60. That by reason of the foregoing and the negligence of the said defendants, this plaintiff is informed and verily believes her aforesaid injuries are permanent and that she will permanently suffer from the effects of her aforesaid injuries and she will be caused to suffer permanent embarrassment and continuous pain and inconvenience.

61. That by reason of the foregoing, this plaintiff was compelled and did necessarily require medical aid and attention and did necessarily pay and become liable therefore, for medicines and upon information and belief, the plaintiff will necessarily incur similar expenses.

62. That by reason of the foregoing, the plaintiff has been unable to attend her usual occupation, avocation and/or activity in the manner required.

63. That by reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the plaintiff was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

64. This action falls within one or more of the exceptions set forth in CPLR §1602.

65. That as a result of the defendants' negligence as aforesaid, this plaintiff, ALISIA CHARTER has sustained damages both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR LOSS OF SERVICES ON BEHALF OF MARC AURELUS**

66. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "65" herein, as though more fully set forth herein at length.

67. That at all times hereinafter mentioned, the plaintiff, MARC AURELUS, was the lawful spouse of the plaintiff, ALISIA CHARTER, and as such plaintiff, MARC AURELUS, was entitled to the society and services of the plaintiff, ALISIA CHARTER.

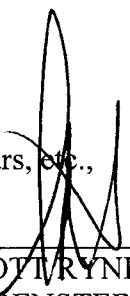
68. By reason of the afore-described negligence of the defendants, the plaintiff, MARC AURELUS, was deprived of the society and services of the plaintiff, ALISIA CHARTER, and shall forever be deprived of said society and services.

69. As a result of the afore-described negligence, the plaintiff, MARC AURELUS, expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for the plaintiff, ALISIA CHARTER.

WHEREFORE, plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, MARC AURELUS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
January 13, 2016

Yours, etc.,



SCOTT RYNECKI
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

ATTORNEY'S VERIFICATION

SCOTT RYNECKI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a Member at RUBENSTEIN & RYNECKI, attorneys of record for Plaintiff, in the action within. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
February 3, 2016



SCOTT RYNECKI

PLEASE take notice that the within is a (*certified*)
true copy of a
duly entered in the office of the clerk of the within
named court on

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented
for settlement to the Hon.

one of the judges of the within named Court, at

on

at

M.

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

Index No.

Year

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

ALISIA CHARTER and MARC AURELUS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER STEPHEN
ANDOLINA, POLICE OFFICER GRASSO,
POLICE SERGEANT RIOS, POLICE SERGEANT
MICHAEL LINDSLEY, JOHN DOES - Police
Officers as yet unidentified, REECE PYANKAROO
And JOHN DOE, fictitious name intended for the
driver of the motor vehicle,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Signature (Rule 130-1.1-a)

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone

16 COURT ST.

BROOKLYN, N.Y. 11241

(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for

Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase: 2/11/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelius

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso, Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and John Doe, fictit

Network Provided
Time - 12:32 PM
Date - February 22, 2016
GPS
40.648228 -73.904373

State of New York: County of Kings

I **Joseph Ieraci** being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on **February 22, 2016 at 12:32 PM at 9720 Foster Avenue, Brooklyn, NY 11236**, deponent served the within **Summons and Complaint** on **Police Sergeant Michael Lindsley** here in known as the Recipient.

Said service was effected in the following manner; **INDIVIDUAL**

By delivering thereat a true copy of each to **Police Sergeant Michael Lindsley** personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: **Yolanda. Black, Female, 5' 6", 140 - 150 lbs, Black hair, Dark eyes, 40 - 45 years**

Mailing

On February 24, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is not

Joseph Ieraci

Joseph Ieraci

License No. 2012136-DCA

FILED
KINGS COUNTY CLERK
2016 FEB 24 PM 4:07
Cms

Notary Section

Subscribed and affirmed, or sworn to before me this 24th day of February, 2016.

Notary Public: Magda Marin-Colon

Commission Expires: _____

Prepared by: _____

Phone: Fax: _____

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 19

Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase: 2/11/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelius

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso, Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and John Doe, fictit

Network Provided
Time - 12:31 PM
Date - February 22, 2016
GPS
40.648712 -73.904892

State of New York: County of Kings

I Joseph Ieraci being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on February 22, 2016 at 12:31 PM at 9720 Foster Avenue, Brooklyn, NY 11236, deponent served the within Summons and Complaint on Police Officer Stephen Andolina 69th Precinct here in known as the Recipient.

Said service was effected in the following manner; INDIVIDUAL

By delivering thereat a true copy of each to Police Officer Stephen Andolina 69th Precinct personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: Yolanda. Black, Female, 5' 7", 150 - 160 lbs, Black hair, Dark eyes, 40 - 45 years

Mailing

On February 24, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is not

Joseph Ieraci

Joseph Ieraci

License No. 2012136-DCA

Notary Section

Subscribed and affirmed, or sworn to before me this 24th day of February, 2016.

Notary Public: Magda Marin-Colon

Commission Expires: _____

Prepared by: _____

Phone: Fax: _____

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2019

FILED
KINGS COUNTY CLERK
2016 FEB 24 PM 4:07

Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase: 2/11/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelus

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso, Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and John Doe, fictit

Network Provided
Time - 12:17 PM
Date - February 23, 2016
GPS
40.756618 -73.970741

State of New York: County of Kings

I Joseph Ieraci being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on February 23, 2016 at 12:17 PM at 167 East 51st Street, New York, NY 10022, deponent served the within Summons and Complaint on Police Officer Grasso 69th 17th Precinct here in known as the Recipient.

Said service was effected in the following manner; INDIVIDUAL

By delivering thereat a true copy of each to Police Officer Grasso 69th 17th Precinct personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: Janice Malcom, Black, Female, 5' 6", 150 - 160 lbs, Black hair, Dark eyes, 45 - 50 years

Mailing

On February 24, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is not

Joseph Ieraci

Joseph Ieraci

License No. 2012136-DCA

Notary Section

Subscribed and affirmed, or sworn to before me this 24th day of February, 2016.

Notary Public: Magda Marin-Colon

Commission Expires: _____

Prepared by: _____

Phone: Fax: _____

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2019

FILED
KINGS COUNTY CLERK
2016 FEB 24 PM 4:07

Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase: 2/11/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelius

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso, Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and John Doe, fictit

Network Provided
Time - 12:32 PM
Date - February 22, 2016
GPS
40.648457 -73.904625

State of New York: County of Kings

I Joseph Ieraci being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on February 22, 2016 at 12:32 PM at 9720 Foster Avenue, Brooklyn, NY 11236, deponent served the within Summons and Complaint on Police Sergeant Rios 69th Precinct here in known as the Recipient.

Said service was effected in the following manner; INDIVIDUAL

By delivering thereat a true copy of each to Police Sergeant Rios 69th Precinct personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: Yolanda. Black, Female, 5' 6", 140 - 150 lbs, Black hair, Dark eyes, 40 - 45 years

Mailing

On February 24, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is not

Joseph Ieraci

Joseph Ieraci

License No. 2012136-DCA

Notary Section

Subscribed and affirmed, or sworn to before me this 24th day of February, 2014.

Notary Public: Magda Marin-Colon

Commission Expires: _____

Prepared by: _____

Phone: Fax: _____

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 19

FILED
KINGS COUNTY CLERK
2016 FEB 24 PM 4:07

Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase: 2/11/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelius

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso, Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and John Doe, fictit

Network Provided
Time - 10:52 AM
Date - February 22, 2016
GPS
40.714085 -74.010422

State of New York: County of Kings

I Joseph Ieraci being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on February 22, 2016 at 10:52 AM at 100 Church Street, New York, NY 10007, deponent served the within Summons and Complaint on The City of New York here in known as the Recipient.

Said service was effected in the following manner; INDIVIDUAL

By delivering thereat a true copy of each to The City of New York personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: Betty Mazyek. Black, Female, 5' 6", 150 - 160 lbs, Gray hair, Dark eyes, 50 - 55 years

Mailing

On February 24, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is not

Joseph Ieraci

Joseph Ieraci

License No. 2012136-DCA

FILED
KINGS COUNTY CLERK
2016 FEB 24 PM 8:07

Notary Section

Subscribed and affirmed, or sworn to before me this 24th day of February, 2016.

Notary Public: Magda Marin-Colon

Commission Expires: _____

Prepared by: _____

Phone: Fax: _____

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-18-20 19

Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase: 2/11/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelus

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso, Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and John Doe, fictit

Network Provided
Time - 10:51 AM
Date - February 22, 2016
GPS
40.714031 -74.010582

State of New York: County of Kings

I Joseph Ieraci being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on February 22, 2016 at 10:51 AM at 100 Church Street, New York, NY 10038, deponent served the within Summons and Complaint on The New York City Police Department here in known as the Recipient.

Said service was effected in the following manner: INDIVIDUAL

By delivering thereat a true copy of each to The New York City Police Department personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: Betty Mazyck. Black, Female, 5' 6", 170 - 180 lbs, Gray hair, Dark eyes, 50 - 55 years

Mailing

On February 24, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is not

Joseph Ieraci

Joseph Ieraci

License No. 2012136-DCA

FILED
KINGS COUNTY CLERK
2016 FEB 24 PM 4:07

Notary Section

Subscribed and affirmed, or sworn to before me this 24th day of February, 2016.

Notary Public: Magda Marin Colon

Commission Expires: _____

Prepared by: _____

Phone: Fax: _____

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2019

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS*****28630*****AFFIDAVIT OF SERVICE**Index no : **1693/2016**Date Index Number Purchased: **02/11/2016**

Plaintiff(s):	ALISIA CHARTER AND MARC AURELUS,
Defendant(s):	THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, ET AL.

STATE OF NEW YORK
COUNTY OF TIOGA ss.:

NATHAN CORNISH, the undersigned, being duly sworn, deposes and says that I was at the time of service over the age of eighteen and not a party to this action. I reside in the STATE OF NEW YORK.

On **05/05/2016** at **3:41 PM**, deponent served the within **SUMMONS AND COMPLAINT** on **REECE PYANKAROO** at **139 WASHINGTON STREET, APT. 204, BINGHAMTON, NY 13901** by affixing the aforementioned documents to the door of **REECE PYANKAROO's** said residence, since admittance could not be obtained upon reasonable application or a person of suitable age and discretion found who would receive same.

Deponent made prior efforts to effect personal service upon **REECE PYANKAROO** at the aforementioned address to wit: **03/03/2016** at **2:31 PM**, **04/28/2016** at **6:05 PM**, **05/04/2016** at **11:55 AM**, **05/05/2016** at **3:41 PM**

On **05/06/2016**, deponent enclosed a copy of same in a first class postpaid envelope bearing the words "Personal & Confidential" properly addressed to defendant and defendant's last known residence, at **139 WASHINGTON STREET, APT. 204, BINGHAMTON, NY 13901** and deposited said envelope in an official depository under the exclusive care and custody of the U.S. Postal Service within New York State. The envelope did not indicate on the outside thereof, by return address or otherwise, that the communication was from an attorney or concerned an action against the defendant.

Comments: **DMV verified**Sworn to and subscribed before me on **05/06/2016**

Paula Teeter
Notary Public, State of New York

Tioga County No. **01TE6040398**; Comm. Exp. **4/24/2018**

NATHAN CORNISH
INTER COUNTY JUDICIAL SERVICES
LLC
85 WILLIS AVENUE STE. F
MINEOLA, NY 11501
516-248-8270
Atty File#:

2016 MAY 18 PM 3:44
FILED
COUNTY CLERK

REQUEST FOR JUDICIAL INTERVENTION

UCS-840 (7/2012)

Supreme COURT, COUNTY OF Kings

Index No: 1693/16 Date Index Issued: 02/11/2016

CAPTION: Enter the complete case caption. Do not use et al or et ano. If more space is required, attach a caption rider sheet.

ALISIA CHARTER and MARC AURELUS,

Plaintiff(s)/Petitioner(s)

For Court Clerk Use Only:

IAS Entry Date

Judge Assigned

RJI Date

FILED
KINGS COUNTY CLERK
16 AUG -9 PM 3:30

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY

POLICE DEPARTMENT, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY, JOHN DOES - Police Officers as yet unidentified, REECE PYANKAROO and JOHN DOE, fictitious name intended from the driver of the motor vehicle,

Defendant(s)/Respondent(s)

NATURE OF ACTION OR PROCEEDING:

Check ONE box only and specify where indicated.

MATRIMONIAL

☐ Contested

NOTE: For all Matrimonial actions where the parties have children under the age of 18, complete and attach the MATRIMONIAL RJI Addendum.

For Uncontested Matrimonial actions, use RJI form UD-13.

TORTS

☐ Asbestos☐ Breast Implant☐ Environmental: _____

(specify)

☐ Medical, Dental, or Podiatric Malpractice☒ Motor Vehicle☐ Products Liability: _____

(specify)

☐ Other Negligence: false arrest

(specify)

☐ Other Professional Malpractice: _____

(specify)

☐ Other Tort: _____

(specify)

OTHER MATTERS

☐ Certificate of Incorporation/Dissolution [see NOTE under Commercial]☐ Emergency Medical Treatment☐ Habeas Corpus☐ Local Court Appeal☐ Mechanic's Lien☐ Name Change☐ Pistol Permit Revocation Hearing☐ Sale or Finance of Religious/Not-for-Profit Property☐ Other: _____

(specify)

COMMERCIAL

☐ Business Entity (including corporations, partnerships, LLCs, etc.)☐ Contract☐ Insurance (where insurer is a party, except arbitration)☐ UCC (including sales, negotiable instruments)☐ Other Commercial: _____

(specify)

NOTE: For Commercial Division assignment requests [22 NYCRR § 202.70(d)], complete and attach the COMMERCIAL DIV RJI Addendum.

REAL PROPERTY: How many properties does the application include? _____

☐ Condemnation☐ Mortgage Foreclosure (specify): _____☐ Residential☐ Commercial

Property Address: _____

Street Address

City

State

Zip

NOTE: For Mortgage Foreclosure actions involving a one- to four-family, owner-occupied, residential property, or an owner-occupied

condominium, complete and attach the FORECLOSURE RJI Addendum.

☐ Tax Certiorari - Section: _____ Block: _____ Lot: _____☐ Tax Foreclosure☐ Other Real Property: _____

(specify)

SPECIAL PROCEEDINGS

☐ CPLR Article 75 (Arbitration) [see NOTE under Commercial]☐ CPLR Article 78 (Body or Officer)☐ Election Law☐ MHL Article 9.60 (Kendra's Law)☐ MHL Article 10 (Sex Offender Confinement-Initial)☐ MHL Article 10 (Sex Offender Confinement-Review)☐ MHL Article 81 (Guardianship)☐ Other Mental Hygiene: _____

(specify)

☐ Other Special Proceeding: _____

(specify)

STATUS OF ACTION OR PROCEEDING:

Answer YES or NO for EVERY question AND enter additional information where indicated.

YES NO

Has a summons and complaint or summons w/notice been filed?

☒

If yes, date filed: 02/11/2016

Has a summons and complaint or summons w/notice been served?

☐

If yes, date served: 05/05/2016

Is this action/proceeding being filed post-judgment?

☐

If yes, judgment date: _____

NATURE OF JUDICIAL INTERVENTION:

Check ONE box only AND enter additional information where indicated

- ☐ Infant's Compromise
☐ Note of Issue and/or Certificate of Readiness
☐ Notice of Medical, Dental, or Podiatric Malpractice Date Issue Joined: 06/08/2016
☐ Notice of Motion Relief Sought: _____ Return Date: _____
☐ Notice of Petition Relief Sought: _____ Return Date: _____
☐ Order to Show Cause Relief Sought: _____ Return Date: _____
☐ Other Ex Parte Application Relief Sought: _____
☐ Poor Person Application
☒ Request for Preliminary Conference
☐ Residential Mortgage Foreclosure Settlement Conference
☐ Writ of Habeas Corpus
☐ Other (specify): _____

RELATED CASES:

List any related actions. For Matrimonial actions, include any related criminal and/or Family Court cases. If additional space is required, complete and attach the RJJ Addendum. If none, leave blank.

Case Title	Index/Case No.	Court	Judge (if assigned)	Relationship to Instant Case

PARTIES:

For parties without an attorney, check "Un-Rep" box AND enter party address, phone number and e-mail address in space provided. If additional space is required, complete and attach the RJJ Addendum.

Un-Rep	Parties:	Attorneys and/or Unrepresented Litigants:	Issue Joined (Y/N):	Insurance Carrier(s):
☐	CHARTER Last Name ALISIA First Name Primary Role: Plaintiff Secondary Role (if any): Plaintiff	Last Name RUBENSTEIN & RYNECKI, ESQ. First Name Firm Name 16 COURT STREET, SUITE 1717 Street Address BROOKLYN City New York State 11241 Zip +1 (718) 522-1020 Phone +1 (718) 522-3804 Fax e-mail	☒ YES ☐ NO	
☐	AURELUS Last Name MARC First Name Primary Role: Plaintiff Secondary Role (if any): Plaintiff	Last Name RUBENSTEIN & RYNECKI, ESQ. First Name Firm Name 16 COURT STREET, SUITE 1717 Street Address BROOKLYN City New York State 11241 Zip +1 (718) 522-1020 Phone +1 (718) 522-3804 Fax e-mail	☒ YES ☐ NO	
☐	THE CITY OF NEW YORK Last Name First Name Primary Role: Defendant Secondary Role (if any):	Last Name ZACHARY W. CARTER First Name Firm Name 350 JAY STREET, 8TH FLOOR Street Address BROOKLYN City New York State 11201 Zip +1 (718) 724-5200 Phone Fax e-mail	☒ YES ☐ NO	
☐	ANDOLINA Last Name POLICE OFFICER STEPHEN First Name Primary Role: Defendant Secondary Role (if any):	Last Name ZACHARY W. CARTER First Name Firm Name 350 JAY STREET, 8TH FLOOR Street Address BROOKLYN City New York State 11201 Zip +1 (718) 724-5200 Phone Fax e-mail	☒ YES ☐ NO	

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, OTHER THAN AS NOTED ABOVE, THERE ARE AND HAVE BEEN NO RELATED ACTIONS OR PROCEEDINGS, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION PREVIOUSLY BEEN FILED IN THIS ACTION OR PROCEEDING.

Dated: 08/04/2016

SIGNATURE

ROBERT MIJUCA, ESQ.

PRINT OR TYPE NAME

ATTORNEY REGISTRATION NUMBER

Print Form

NATURE OF JUDICIAL INTERVENTION:

Check ONE box only AND enter additional information where indicated.

- ☐ Infant's Compromise
☐ Note of Issue and/or Certificate of Readiness
☐ Notice of Medical, Dental, or Podiatric Malpractice
☐ Notice of Motion
☐ Notice of Petition
☐ Order to Show Cause
☐ Other Ex Parte Application
☐ Poor Person Application
☒ Request for Preliminary Conference
☐ Residential Mortgage Foreclosure Settlement Conference
☐ Writ of Habeas Corpus
☐ Other (specify):

Date Issue Joined: 06/08/2016

Relief Sought: _____ Return Date: _____

Relief Sought: _____ Return Date: _____

Relief Sought: _____ Return Date: _____

Relief Sought: _____ Return Date: _____

RELATED CASES:

List any related actions. For Matrimonial actions, include any related criminal and/or Family Court cases. If additional space is required, complete and attach the RJJ Addendum. If none, leave blank.

Case Title	Index/Case No.	Court	Judge (if assigned)	Relationship to Instant Case

PARTIES:

For parties without an attorney, check "Un-Rep" box AND enter party address, phone number and e-mail address in space provided. If additional space is required, complete and attach the RJJ Addendum.

Un-Rep	Parties: List parties in caption order and indicate party role(s) (e.g. defendant; 3rd-party plaintiff).	Attorneys and/or Unrepresented Litigants: Provide attorney name, firm name, business address, phone number and e-mail address of all attorneys that have appeared in the case. For unrepresented litigants, provide address, phone number and e-mail address.	Issue Joined (Y/N):	Insurance Carrier(s):
☐	GRASSO Last Name POLICE OFFICER First Name Primary Role: Defendant Secondary Role (if any): Plaintiff	ZACHARY W. CARTER Last Name First Name Firm Name 350 JAY STREET, 8TH FLOOR Street Address BROOKLYN City New York State 11201 Zip +1 (718) 724-5200 Phone +1 (718) 522-3804 Fax e-mail	☒ YES ☐ NO	
☐	RIOS Last Name POLICE SERGEANT First Name Primary Role: Defendant Secondary Role (if any): Defendant	ZACHARY W. CARTER Last Name First Name Firm Name 350 JAY STREET, 8TH FLOOR Street Address BROOKLYN City New York State 11201 Zip +1 (718) 724-5200 Phone +1 (718) 522-3804 Fax e-mail	☒ YES ☐ NO	
☐	LINDSLEY Last Name POLICE SERGEANT MICHAEL First Name Primary Role: Defendant Secondary Role (if any):	ZACHARY W. CARTER Last Name First Name Firm Name 350 JAY STREET, 8TH FLOOR Street Address BROOKLYN City New York State 11201 Zip +1 (718) 724-5200 Phone Fax e-mail	☒ YES ☐ NO	
☐	Last Name First Name Primary Role: Secondary Role (if any): Defendant	Last Name First Name Firm Name Street Address City New York State Zip Phone Fax e-mail	☒ YES ☐ NO	

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, OTHER THAN AS NOTED ABOVE, THERE ARE AND HAVE BEEN NO RELATED ACTIONS OR PROCEEDINGS, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION PREVIOUSLY BEEN FILED IN THIS ACTION OR PROCEEDING.

Dated: 08/04/2016

SIGNATURE

ROBERT MIJUCA, ESQ.

PRINT OR TYPE NAME

ATTORNEY REGISTRATION NUMBER

Print Form

DOE: 4/12/15

LOC: 69th Pct.

SLED

KINGS COUNTY

PRELIMINARY CONFERENCE ORDER

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

HON. MARTIN SCHNEIER, JHO

ALISA CHARTER & MARC AURELIUS

Plaintiff(s),

- against -

CITY OF New York,
ET AL. Defendant(s).

Index No.: 1693/2016

Prelim. Conf. Date: 10/17/16

Comp. Conf. Date: 3/21/17

Note of Issue Date: 6/30/17

Justice: GENOVESE, by SCHNEIER

IAS Part 22A8

City File: TT 2016-005088

I. Insurance Coverage:

- (a) Defendant City of New York and/or other defendants represented by Corporation Counsel, if any, is/are ☒ self-insured. ☐ covered by an insurance policy.
- (b) Defendant(s) _____, if not already provided, to furnish to all parties, including, evidence of excess coverage and Certificate of Insurance, within 30 days.

II. Bill of Particulars:

- (a) A verified bill of particulars shall be served by _____ within 60 days.
- (b) A supplemental bill of particulars shall be served by _____ as to to be served not previously disclosed item(s) _____, within 60 days.
- (c) Defendant _____ to provide a verified bill of particulars as to affirmative defenses within 60 days. _____

III. Medical Reports and Authorizations:

HIPAA & ARMS

- (a) Plaintiff(s) shall provide authorizations to obtain copies of the actual records of all treating and examining health care providers, including diagnostic tests, x-rays, MRIs, EMGs, CT Scans, for injuries specified in the bill of particulars, within 90 days.
- (b) Plaintiff(s) shall provide an authorization for collateral source information, if any, within 90 days.

including prior &
Subsequent treatment
to affected areas &
any mental health
treatment.

(c) If, plaintiff is claiming a loss of income or wages, authorizations for W2 forms, and/or IRS records, and/or employment records shall be provided for the year of, year before and year after the date of the alleged accident, as well as authorizations for the period of time lost from work as a result of the alleged accident, within 90 days.

(d) If, plaintiff was a student at the time of the alleged accident, plaintiff shall provide an authorization for school attendance records for the period of time lost from school as a result of the alleged accident, within 90 days.

IV Physical Examination:

(a) A physical examination of the plaintiff shall be scheduled within 60 days after completion of plaintiff's examination before trial.

(b) A copy of the physician's report shall be furnished to plaintiff(s) within 60 days after the examination.

(c) Defendant(s)' right to a further physical is reserved as to any new injuries claimed in any supplemental bill of particulars served by plaintiff(s).

V Depositions: (check applicable box)

(a) The depositions of the following parties shall take place on _____ at _____ a.m./p.m. at the following location:

100 CHEECH ST., NY, NY 10007

☐ All parties

☒ Plaintiff(s), Plaintiff on 2/2/17; all Ds on 2/9/17

☐ Waived by _____ as to _____

(b) Defendant(s)' right to seek a further deposition of plaintiff(s) is reserved as to any new injuries or damages claimed in any supplemental bill of particulars served by plaintiff(s) following the plaintiff's deposition.

VI Other Disclosure:

(a) All parties shall provide the names and addresses of any witnesses to the occurrence and notice witnesses (including plaintiff); accident reports; party statements; photographs taken in the ordinary course of business, and/or to be presented at trial, within 90 days.

(b) All parties shall supply expert witness disclosure pursuant to the CPLR.

(c) The City of New York and/or other defendants represented by Corporation Counsel, if any, shall provide the following information to all parties within 90 days after the date of this order, subject to the date and location specified in the notice of claim (check if applicable):

~~1. Premises Liability Cases:~~

- ~~i. Departmental accident/incident report from respective City agency;~~
- ~~ii. For non-transitory conditions, maintenance and repair records and written complaints regarding the condition complained of for _____ year(s) prior to and including the date of occurrence.~~
- ~~iii. For transitory conditions, maintenance and written complaints regarding the condition complained of for 1 month prior to and including the date of the occurrence.~~

color
evidence
depicting
the incident
and/or
Pl's injuries.

4. Cases involving allegations of defective traffic signals (DOT):

- i. Maintenance and repair records for 30 days prior to and including date of occurrence;
 - ii. Complaints made for 30 days prior to and including date of occurrence;
 - iii. The name and address of the contractor responsible for maintenance of the traffic signals on date of the occurrence.
 - iv. A copy of the title and signature pages, and insurance declaration sheets and/or certificates, for all contracts in effect for two years prior to and including the date of the occurrence shall be supplied by the City within _____ days.
 - v. Contracts and all related contract documents for 2 years prior to and including the date of occurrence will be made available for inspection at either the Office of the Corporation Counsel located at _____, New York, or the appropriate City agency, upon a mutually convenient appointment, pursuant to CPLR 3120(a)(1)(i).
- _____

5. Cases involving allegations of defective traffic signs (DOT):

- i. Maintenance and repair records for 6 months prior to and including the date of occurrence;
 - ii. Complaints for 6 months prior to and including the date of the occurrence.
- _____

6. Cases involving allegations of police misconduct:

The City will provide the following within 90 days after receipt from plaintiff, of an authorization:

- i. Complaint Report;
 - ii. Complaint Follow Up Report(s);
 - iii. Arrest Report; — at ref's 6831
 - iv. Memo Book entries for incident in question;
 - v. On-line Booking Sheet.
 - vi. Copies of the applicable section(s) of the Patrol Guide relating to
- _____

shall be made available by the City for inspection and copying within 90 days.

vii. 911 tape if it exists and sprint printout.

- iv. For transitory conditions, maintenance and written complaints regarding the condition complained of for 1 month prior to and including the date of the occurrence.

- (d) Surveillance videos to be provided in accordance with CPLR 3101(i)
- (e) Any party who wishes to obtain prior notices of claim, pursuant to GML§ 50-g, may do so by contacting LEE McNEIL (212) 669-4329 to set up an appointment to search the index maintained at 1 Centre Street, New York, New York.
- (f) Any party who wishes to obtain a MV-104, be advised that the New York City Police Department no longer maintains MV-104s beyond 30 days for accidents occurring after April 15, 1995.
- (g) All searches shall be conducted based upon the date and location as described in the notice of claim.

ALL PARTIES ARE REQUIRED PRIOR TO THIS CONFERENCE TO REVIEW ALL OUTSTANDING DISCOVERY DEMANDS SERVED UPON ANOTHER PARTY. IT IS THE INTENT OF THIS PRELIMINARY CONFERENCE TO RULE UPON ALL OF THESE OPEN DISCOVERY DEMANDS. PURSUANT TO UNIFORM RULES SECTION 202.12 (C) & (D), THIS ORDER REPRESENTS THE COURT'S RULING UPON ANY OUTSTANDING DISCOVERY DEMANDS PREVIOUSLY SERVED UPON A PARTY OTHER THAN THOSE ITEMS SPECIFICALLY EXCEPTED. THIS ORDER DOES NOT PRECLUDE ANY PARTY FROM SERVING POST-CONFERENCE DISCOVERY DEMANDS OR MAKING ANY MOTION PURSUANT TO THE CPLR.

VII. Co-defendant(s) and/or third-party(ies) to provide the following to all parties:

VIII. Third-party actions/Impleader

1. None
2. Already Commenced
3. Shall be completed within 90 days after completion of all depositions.

IX. Compliance Conference:

A party seeking compliance with this order should contact the court to schedule a compliance conference prior to the service of a discovery motion.

X. Note of Issue Date:

A note of issue may be filed in accordance with the rules of the Supreme Court, Kings County.

XI. Stipulations of Discontinuance:

Plaintiff(s) shall ensure that a stipulation of discontinuance shall be promptly filed if the case settles before the next meeting with the court.

XII. Additional Directives:

Failure to comply with any of these directives may result in the imposition of costs or sanctions or other action authorized by law.

This constitutes the decision and order of the court.

Dated: 10/17/16

HON. MARTIN SCHNEER, JHO

Appearances/Copy of this order received on the date hereof.

From: Rosenstock, Kynedi
by: Rob M. Jucq
Attorney / telephone for Plaintiff(s)

From: _____
by: _____
Attorney / telephone for Plaintiff(s)

From: _____
by: ZWC Core Counsel
Attorney / telephone for Defendant

From: _____
by: _____
Attorney / telephone for Defendant

City of New York, PO STEPHEN ANDALINA,
PO JALYN GRASSO, PO JOSEPH RIOS, & PO MICHAEL LINDSTADT

From: Wright, F + M
by: RS
Attorney / telephone for

From: _____
by: _____
Attorney / telephone for

From: _____
by: _____
Attorney / telephone for

From: _____
by: _____
Attorney / telephone for

2016 OCT 28 AM 8:34
FILED
KINGS COUNTY CLERK

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALISIA CHARTER and MARC AURELUS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER STEPHEN
ANDOLINA, POLICE OFFICER JACLYN GRASSO,
POLICE OFFICER JOSHUA RIOS, POLICE OFFICER
MICHAEL LINDSLEY, JOHN DOES – Police Officers as yet
unidentified, REECE PYANKAROO and EVANS L.
PYANKAROO,

Defendants.

-----X

Index # 1693/16

Date of filing:

Plaintiffs designate Kings
County as the place of trial

Basis of the venue is the Locus
of Occurrence

**SUPPLEMENTAL
SUMMONS**

Plaintiffs reside at
110-47 Union Hall Street
Jamaica, New York 11433

County of Queens

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
c/o Zachary W. Carter, Esqs.
350 Jay Street
Brooklyn, New York 11201

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

THE NEW YORK CITY POLICE
DEPARTMENT

c/o Zachary W. Carter, Esqs.
350 Jay Street
Brooklyn, New York 11201

POLICE OFFICER STEPHEN ANDOLINA

c/o Zachary W. Carter, Esqs.
350 Jay Street
Brooklyn, New York 11201

POLICE OFFICER JACLYN GRASSO

c/o Zachary W. Carter, Esqs.
350 Jay Street
Brooklyn, New York 11201

2016 DEC -6 PM 6:29
FILED
KINGS COUNTY CLERK

Defendant's address:

POLICE OFFICER JOSHUA RIOS
c/o Zachary W. Carter, Esqs.
350 Jay Street
Brooklyn, New York 11201

POLICE OFFICER MICHAEL LINDSLEY
c/o Zachary W. Carter, Esqs.
350 Jay Street
Brooklyn, New York 11201

REECE PYANKAROO
c/o Law Offices Martin, Fallon & Mulle
100 East Carver Street
Huntington, New York 11743

EVANS L. PYANKAROO
1081 East 43rd Street
Brooklyn, New York 11210

Dated: Brooklyn, New York
December 5, 2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 1693/16

-----X
ALISIA CHARTER and MARC AURELUS,

Plaintiffs,

**AMENDED
COMPLAINT**

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER STEPHEN
ANDOLINA, POLICE OFFICER JACLYN GRASSO,
POLICE OFFICER JOSHUA RIOS, POLICE OFFICER
MICHAEL LINDSLEY, JOHN DOES – Police Officers as yet
unidentified, REECE PYANKAROO and EVANS L.
PYANKAROO,

Defendants.

-----X

Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF ALISIA CHARTER**

1. That at all times hereinafter mentioned, plaintiffs were and still are residents of the County of Queens, City and State of New York.
2. That at all times hereinafter mentioned, defendant, REECE PYANKAROO, was and still is a resident of the County of Broome and State of New York.
3. That at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, was and still is a resident of the County of Kings, City and State of New York.
4. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
5. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
6. That prior hereto on June 19, 2015, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and

damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

7. That on October 30, 2015, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

8. That on April 12, 2015, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

9. That on April 12, 2015, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ALISIA CHARTER, was lawfully present at or near the premises known as the 69th Precinct of the New York City Police Department located at 9720 Foster Avenue, County of Kings, City and State of New York.

10. That on April 12, 2015, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, and JOHN DOES – Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they falsely arrested and confined the plaintiff, ALISIA CHARTER.

11. That on April 12, 2015, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

12. That as a result of the aforesaid false arrest and confinement, plaintiff, ALISIA CHARTER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

13. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF ALISIA CHARTER**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That on April 12, 2015, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, and JOHN DOES -Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

16. That defendants, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, and JOHN DOES -Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

17. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING
AND RETENTION ON BEHALF OF ALISIA CHARTER**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY and JOHN DOES – Police Officers as yet unidentified, who falsely arrested and violated the civil rights of the plaintiff, ALISIA CHARTER.

20. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY and JOHN DOES – Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

21. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ALISIA CHARTER**

22. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "21" inclusive with the same force and effect as if more fully set forth at length herein.

23. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER STEPHEN

ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, and JOHN DOES -Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff ALISIA CHARTER, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

24. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, and JOHN DOES -Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, ALISIA CHARTER of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

25. The defendants had deprived the plaintiff by their actions of her civil rights as guaranteed by statute.

26. That the false arrest and imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

27. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, and JOHN DOES -Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

28. That the defendants' actions were not privileged or immune.

29. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER STEPHEN

ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, and JOHN DOES -Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of her civil rights.

30. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts

**AS AND FOR AN FIFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ALISIA CHARTER**

31. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "30" inclusive with the same force and effect as if more fully set forth at length herein.

32. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

33. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, and JOHN DOES -Police Officers as yet unidentified, herein-above alleged.

34. By the reason of the foregoing, the plaintiff, ALISIA CHARTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION
FOR NEGLIGENCE ON BEHALF OF ALISIA CHARTER**

35. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "34" inclusive with the same force and effect as if more fully set forth at length herein.

36. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, was the owner of a 1999 Nissan motor vehicle bearing New York State license plate number GFP1011.

37. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, was the owner of a 1999 Nissan motor vehicle bearing vehicle identification number JN1CA21D8XT218464.

38. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, operated the aforesaid motor vehicle.

39. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, controlled the aforesaid motor vehicle.

40. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, managed the aforesaid motor vehicle.

41. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, maintained the aforesaid motor vehicle.

42. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKAROO, serviced the aforesaid motor vehicle.

43. That on April 12, 2015, and at all times hereinafter mentioned, defendant, REECE PYANKARRO, repaired the aforesaid motor vehicle.

44. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, was the operator of a 1999 Nissan motor vehicle bearing New York State license plate number GFP1011.

45. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, was the operator of a 1999 Nissan motor vehicle bearing vehicle identification number JN1CA21D8XT218464.

46. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, operated the aforesaid motor vehicle.

47. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, controlled the aforesaid motor vehicle.

48. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, managed the aforesaid motor vehicle.

49. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, maintained the aforesaid motor vehicle.

50. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO serviced the aforesaid motor vehicle.

51. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, repaired the aforesaid motor vehicle.

52. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, operated the aforesaid motor vehicle with the knowledge of the defendant-owner.

53. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, operated the aforesaid motor vehicle with the consent of the defendant-owner.

54. That on April 12, 2015, and all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, operated the aforesaid motor vehicle with the permission of the defendant-owner.

55. That on April 12, 2015, and at all times hereinafter mentioned, at or near the intersection Rockaway Parkway and Glenwood Road, County of Kings, City and State of New York, was and still is a public roadway used extensively by the public in general.

56. That on April 12, 2015, and at all times hereinafter mentioned, plaintiff, ALISIA CHARTER, was a lawful pedestrian at the aforementioned location.

57. That on April 12, 2015, and at all times hereinafter mentioned, the motor vehicle bearing license plate number GFP1011 and vehicle identification number JN1CA21D8XT218464, owned by the defendant, REECE PYANKAROO, and operated by the defendant, EVANS L. PYANKAROO, came into contact with plaintiff, a lawful pedestrian at the abovementioned

location, and left the scene of the accident.

58. That on April 12, 2015, and at all times hereinafter mentioned, defendant, EVANS L. PYANKAROO, violently struck the plaintiff at the abovementioned location, and left the scene of the accident.

59. That the above stated occurrence and the results thereof were in no way due to any negligence on the part of the plaintiff contributing thereto, but was caused by the negligence of the defendants, in the ownership, operation, management, maintenance and control of their motor vehicle; in operating same without due regard to the rights and safety of the plaintiff; in operating their motor vehicle in a manner which unreasonably endangered the plaintiff; in failing to properly steer, guide, manage and control their vehicle; in operating same at a rate of speed greater than was reasonable and proper at the time and place of the occurrence; in failing to apply the brakes or slow down or stop in such a manner as would have prevented the occurrence; in failing to have made adequate and timely observation of and response to conditions; in failing to observe signs and signals prevailing at the time and place of the occurrence; in failing to keep a proper look-out when controlling their vehicle; in failing to properly maintain their vehicle according to law; in failing to give adequate and timely signal, notice or warning; in operating their motor vehicle in violation of the traffic rules, regulations, statutes and ordinances in such cases made and provided; and in being otherwise careless, reckless and negligent in the ownership, maintenance, operation and control of their motor vehicle.

60. That by reason of the foregoing and the negligence of the said defendants this plaintiff sustained serious, severe, and permanent injuries to her limbs and body, still suffers and will continue to suffer for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled and so remained for a considerable length of time.

61. That by reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the plaintiff sustained serious injuries as defined in the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in said Insurance Law

62. That by reason of the foregoing and the negligence of the said defendants, this plaintiff is informed and verily believes her aforesaid injuries are permanent and that she will permanently suffer from the effects of her aforesaid injuries and she will be caused to suffer permanent embarrassment and continuous pain and inconvenience.

63. That by reason of the foregoing, this plaintiff was compelled and did necessarily require medical aid and attention and did necessarily pay and become liable therefore, for medicines and upon information and belief, the plaintiff will necessarily incur similar expenses. That by reason of the foregoing, the plaintiff has been unable to attend her usual occupation, avocation and/or activity in the manner required.

64. That by reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the plaintiff was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

65. This action falls within one or more of the exceptions set forth in CPLR §1602.

66. That as a result of the defendants' negligence as aforesaid, this plaintiff, ALISIA

CHARTER has sustained damages both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR LOSS OF SERVICES ON BEHALF OF MARC AURELUS**

67. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "66" herein, as though more fully set forth herein at length.

68. That at all times hereinafter mentioned, the plaintiff, MARC AURELUS, was the lawful spouse of the plaintiff, ALISIA CHARTER, and as such plaintiff, MARC AURELUS, was

entitled to the society and services of the plaintiff, ALISIA CHARTER.

69. By reason of the afore-described negligence of the defendants, the plaintiff, MARC AURELUS, was deprived of the society and services of the plaintiff, ALISIA CHARTER, and shall forever be deprived of said society and services.

70. As a result of the afore-described negligence, the plaintiff, MARC AURELUS, expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for the plaintiff, ALISIA CHARTER.

WHEREFORE, plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ALISIA CHARTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, MARC AURELUS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower

Courts on the **Seventh** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action

Dated: Brooklyn, New
December 5, 2016

Yours, etc., 

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
ALISIA CHARTER
MARC AURELUS
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 15AC04-12

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ. ,an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am a Partner at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUPPLEMENTAL SUMMONS AND AMENDED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
December 5, 2016


ROBERT MIJUCA, ESQ.

NOTICE OF ENTRY

Index No.

Year

PLEASE take notice that the within is a (certified)
true copy of a
duly entered in the office of the clerk of the within
named court on

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALISIA CHARTER and MARC AURELUS,

Dated,
Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO,
POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY,
~~JOHN DOES - Police Officers as yet unidentified~~, REECE PYANKAROO and EVANS L.
PYANKAROO,

To

Defendants.

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented
for settlement to the Hon.

one of the judges of the within named Court, at

on
at M.
Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

SUMMONS AND COMPLAINT

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Plaintiffs

Office and Post Office Address, Telephone

16 COURT ST.

BROOKLYN, N.Y. 11241

(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for

STATE OF NEW YORK COUNTY OF KINGS

SUPREME COURT

ATTORNEY(S) RUBENSTEIN & RYNECKI, ESQS

PH: (718) 522-1020

Date Filed: 12-06-2016

Court/Return Date:

16 COURT ST., STE. 1717 BROOKLYN, NY 11241 |

Alisia Charter and Marc Aurelus

Plaintiff

VS

Defendant

The City of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Jaclyn Grasso, Police Officer Joshua Rios, Police Officer Michael Lindsley, John Does - Police Officer as yet unidentified, Reece Pyankaroo and Evans L. Pyankaroo

STATE OF NEW YORK, COUNTY OF NASSAU, SS.:

AFFIDAVIT OF SERVICE

Assmat Abdelrahman, being sworn says:

Deponent is not a party herein is over the age of 18 years and resides in the State of New York.

On December 21, 2016, at 4:41 PM at 1081 E. 43rd St., Brooklyn, NY 11210. Deponent served the within Supplemental Summons and Amended Complaint

The index number and the filing date of the action were endorsed upon the face of the papers so served herein.

On: Evans L. Pyankaroo, Defendant therein named, (hereinafter referred to as "subject").

☐ #1 INDIVIDUAL

By delivering a true copy of each to said subject personally; Deponent knew the person so served to be the person described in as said subject therein.

☐ #2 ENTITY/CORPORATION/LLC/LLP

By delivering to and leaving with said individual to be who specifically stated he/she was authorized to accept service on behalf of the Corporation/Government Agency/Entity.

☒ #3 SUITABLE AGE PERSON

By delivering thereat a true copy of each to Linda "Doe" () a person of suitable age and discretion. Said premises is subject's:[] actual place of business / employment [X] dwelling house (usual place of abode) within the state.

☐ #4 AFFIXING TO DOOR

By affixing a true copy of each to the door of said premises which is subjects [] actual place of business / employment [] dwelling house (usual place of abode) within the state. Deponent was unable with due diligence to find subject or person of suitable age and discretion thereat having called thereat on

Address confirmation:

☒ #5 MAILING

On December 21, 2016, service was completed by mailing a true copy of above document(s) to the above address in a 1st Class postpaid properly addressed envelope marked "Personal and Confidential" in an official depository under the exclusive care and custody of the United States Post Office in the State of New York.

☒ #6 DESCRIPTIONSex: Female Color of skin: Black Color of hair: Black Age: 51-65
Height: 5ft4in-5ft8in Weight: 131-160 Lbs. Other Features:☐ #7 WITNESS FEES

The authorized witness fee and / or traveling expenses were paid (tendered) to the recipient in the amount of \$

☒ #8 MILITARY SERVICE

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York, and was informed that said person is not.

☐ #9 OTHER

Sworn to before me on December 22, 2016

Patricia Rothfritz

NOTARY PUBLIC STATE OF New York

01R06055503. Qualified in Nassau County

Commission Expires February 26, 2019

Client's File No.:

Process Server, Please Sign

Assmat Abdelrahman

Lic# 1115274

Job #: 1634890



Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase; 12/6/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelus

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso, Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and Erans L. Pyankaroo

Network Provided
Time - 09:14 AM
Date - December 14, 2016
GPS
40.714092 -74.011093

State of New York: County of Kings

I **Joseph Ieraci** being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on **December 14, 2016 at 09:14 AM at 100 Church Street, New York, NY 10007**, deponent served the within **Supplemental Summons on The City Of New York** here in known as the Recipient.

Said service was effected in the following manner; INDIVIDUAL

By delivering thereat a true copy of each to **The City Of New York** personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: **Inez Contreas. Hispanic, Female, 5' 6", 140 - 150 lbs, Brown hair, Dark eyes, 25 - 30 years**

Mailing

On December 15, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is n



Joseph Ieraci

License No. 2012136-DCA

Notary Section

Subscribed and affirmed, or sworn to before me this 15th day of December, 20 16.Notary Public: Magda Marin Colon

Commission Expires: _____

Prepared by: _____

Phone: Fax: _____

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 19

FILED
KINGS COUNTY CLERK
2017 JAN -4 AM 8:47



Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase: 12/6/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelus

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso, Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and **Eran L. Pyankaroo**

Network Provided
Time - 09:14 AM
Date - December 14, 2016
GPS
40.714092 -74.011093

State of New York: County of Kings

I **Joseph Ieraci** being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on **December 14, 2016 at 09:14 AM at 100 Church Street, New York, NY 10007**, deponent served the within **Supplemental Summons on The NYPD** here in known as the Recipient.

Said service was effected in the following manner; **INDIVIDUAL**

By delivering thereat a true copy of each to **The NYPD** personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: **Inez Contreas. Hispanic, Female, 5' 6", 140 - 150 lbs, Brown hair, Dark eyes, 25 - 30 years**

Mailing

On December 15, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is n



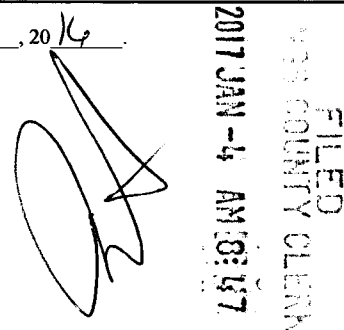
Joseph Ieraci
License No. 2012136-DCA
Notary Section

Subscribed and affirmed, or sworn to before me this 15th day of December, 2016.

Notary Public: Magda Marin-Colon
Commission Expires: _____
Prepared by: _____
Phone: Fax: _____

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20/9

FILED
KINGS COUNTY CLERK
2017 JAN -4 AM 10:47



Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase: 12/6/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelius

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso

Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and *Evan L. Pyankaroo*

Network Provided
 Time - 10:15 AM
 Date - December 14, 2016
 GPS
 40.648991 -73.904556

State of New York: County of Kings

I **Joseph Ieraci** being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on **December 14, 2016 at 10:15 AM at 9720 Foster Avenue, Brooklyn, NY 11236**, deponent served the within **Supplemental Summons on Police Officer Stephen Andolina, C/O Zachary W. Carter** here in known as the Recipient.

Said service was effected in the following manner; INDIVIDUAL

By delivering thereat a true copy of each to **Police Officer Stephen Andolina , C/O Zachary W. Carter** personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: **Yolanda. Black, Female, 5' 6", 160 - 170 lbs, Black hair, Dark eyes, 50 - 55 years**

Mailing

On December 15, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is n

Joseph Ieraci

Joseph Ieraci

License No. 2012136-DCA

Notary Section

Subscribed and affirmed, or sworn to before me this

15th

day of

December, 20 16.

Notary Public:

Commission Expires:

Prepared by:

Phone: Fax:

MAGDA MARIN-COLON
 Notary Public, State of New York
 No. 01MA6158891
 Qualified in Richmond County
 Commission Expires 1-16-20

FILED
 KINGS COUNTY CLERK
 2017 JAN -4 AM 10:17

Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase; 12/6/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelius

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso,

Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and Eren L. Pyankaroo

Network Provided
Time - 10:15 AM
Date - December 14, 2016
GPS
40.648991 -73.904556

State of New York: County of Kings

I **Joseph Ieraci** being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on **December 14, 2016 at 10:15 AM at 9720 Foster Avenue, Brooklyn, NY 11236**, deponent served the within **Supplemental Summons on Police Officer Joshua Rios, C/O Zachary W. Carter** here in known as the Recipient.

Said service was effected in the following manner; INDIVIDUAL

By delivering thereat a true copy of each to **Police Officer Joshua Rios, C/O Zachary W. Carter** personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: **Yolanda. Black, Female, 5' 6", 160 - 170 lbs, Black hair, Dark eyes, 50 - 55 years**

Mailing

On December 15, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is n



Joseph Ieraci

License No. 2012136-DCA

Notary Section

Subscribed and affirmed, or sworn to before me this 15th day of December, 20 16.

Notary Public: Magda Marin-Colon

Commission Expires: _____

Prepared by: _____

Phone: Fax: _____

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 19

FILED
KINGS COUNTY CLERK
2017 JAN -4 AM 10:17

NYSCEF DOC. NO. 1
STATE OF NEW YORK COUNTY OF KINGS

SUPREME COURT

ATTORNEY(S) RUBENSTEIN & RYNECKI, ESQS
16 COURT ST., STE. 1717 BROOKLYN, NY 11241 |

PH: (718) 522-1020

RECEIVED NYSCF Number: 16169320

Date Filed: 12-06-2016

Court/Return Date:

Alisia Charter and Marc Aurelus

Plaintiff

VS

Defendant

The City of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Jaclyn Grasso, Police Officer Joshua Rios, Police Officer Michael Lindsley, John Does - Police Officer as yet unidentified, Reece Pyankaroo and Evans L. Pyankaroo

STATE OF NEW YORK, COUNTY OF NASSAU, SS.:

AFFIDAVIT OF SERVICE

Kevin Miller

, being sworn says:

Deponent is not a party herein is over the age of 18 years and resides in the State of New York.

On December 16, 2016, at 100 E. Carver St., Huntington, NY 11743, Deponent served the within Supplemental Summons and Amended Complaint

The index number and the filing date of the action were endorsed upon the face of the papers so served herein.

On: Law Offices Martin, Fallon & Mule OBO Reece Pyankaroo, Defendant therein named, (hereinafter referred to as "subject").☐ #1 INDIVIDUAL

By delivering a true copy of each to said subject personally; Deponent knew the person so served to be the person described in as said subject therein.

☒ #2 ENTITY/CORPORATION/LLC/LLP

By delivering to and leaving with said individual to be who specifically stated he/she was authorized to accept service on behalf of the Corporation/Government Agency/Entity.

☐ #3 SUITABLE AGE PERSON

By delivering thereat a true copy of each to () a person of suitable age and discretion. Said premises is subject's: [] actual place of business / employment [] dwelling house (usual place of abode) within the state.

☐ #4 AFFIXING TO DOOR

By affixing a true copy of each to the door of said premises which is subjects [] actual place of business / employment [] dwelling house (usual place of abode) within the state. Deponent was unable with due diligence to find subject or person of suitable age and discretion thereat having called thereat on

Address confirmation:

☐ #5 MAILING

On , service was completed by mailing a true copy of above document(s) to the above address in a 1st Class postpaid properly addressed envelope marked "Personal and Confidential" in an official depository under the exclusive care and custody of the United States Post Office in the State of New York.

☒ #6 DESCRIPTIONSex: Color of skin: Color of hair: Age:
Height: Weight: Other Features:☐ #7 WITNESS FEES

The authorized witness fee and / or traveling expenses were paid (tendered) to the recipient in the amount of \$

☐ #8 MILITARY SERVICE

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York, and was informed that said person is not.

☐ #9 OTHER

Sworn to before me on December 19, 2016

Patricia Rothritz
NOTARY PUBLIC STATE OF New York
01R06055503, Qualified in Nassau County
Commission Expires February 26, 2019

Client's File No.:

Process Server, Please Sign
Kevin Miller
Lic# N/A
Job #: 1634888

Affidavit of Service

Supreme Court, KINGS County, New York

Date of Purchase: 12/6/16

CASE NO.: 1693/16

Plaintiff / Petitioner: Alisia Charter and Marc Aurelus

Defendant / Respondent: The City Of New York, The New York City Police Department, Police Officer Stephen Andolina, Police Officer Grasso.

Police Sergeant Rios, Police Sergeant Michael Lindsley, John Does- Police Officers as yet unidentified, Reece Pyankaroo and *Erin L. Pyankaroo*

Network Provided
 Time - 10:15 AM
 Date - December 14, 2016
 GPS
 40.648991 -73.904556

State of New York: County of Kings

I **Joseph Ieraci** being duly sworn deposes and says: that deponent is not a party to this action, is over 18 years of age and resides in County of Kings in the state of New York.

That on **December 14, 2016 at 10:15 AM at 9720 Foster Avenue, Brooklyn, NY 11236**, deponent served the within **Supplemental Summons on Police Officer Michael Lindsley, C/O Zachary W. Carter** here in known as the Recipient.

Said service was effected in the following manner; INDIVIDUAL

By delivering thereat a true copy of each to **Police Officer Michael Lindsley, C/O Zachary W. Carter** personally; deponent knew said person so served to be the person described as said recipient therein.

Deponent describes the individual served to the best of the deponent's ability at the time and circumstances of service as follows: **Yolanda. Black, Female, 5' 6", 160 - 170 lbs, Black hair, Dark eyes, 50 - 55 years**

Mailing

On December 15, 2016 service was completed by mailing a true copy of above document (s) to the above address in a First (1) Class postpaid properly addressed envelope Marked "Personal and Confidential" in a official depository under the exclusive care and custody of the United States Post Office in the State of New York

Military Service

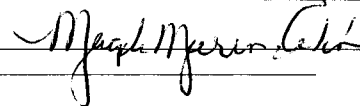
Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York and was informed that said person is n



Joseph Ieraci

License No. 2012136-DCA

Notary Section

Subscribed and affirmed, or sworn to before me this 15th day of December, 2016.Notary Public: 

Commission Expires: _____

Prepared by: _____

Phone: Fax: _____

MAGDA MARIN-COLON
 Notary Public, State of New York
 No. 01MA6158891
 Qualified in Richmond County
 Commission Expires 1-16-20 *19*

FILED
 KINGS COUNTY CLERK
 2017 JAN -4 AM 10:17


SLED - Mahoney

At an I.A.S. Trial Term, Part 27 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 21 day of March 20 17

P R E S E N T

Hon.

Brodie by Schneier
Justice

HON. MARTIN SCHNEIER, JHO

AUSIA CHARTER &
MARC AURELUS
- against -

Plaintiff(s)

Cal. No. 10

Index No. 1693 / 2016

CITY OF NEW YORK, ET AL.

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

TODAY'S CC IS RESOLVED AS FOLLOWS:

① PLAINTIFF EBT: 4/10/17

② Δ PYANKAROO EBT: 4/17/17

③ CITY EBTs: ~~4/25/17~~ 5/25/17 & 5/26/17 *subject to office RDOs

④ Δ PYANKAROO TO PROVIDE CITY A COPY OF ALL PLEADINGS & DISCOVERY RESPONSES

⑤ FCC: 7/25/17

For Clerks use only

MG

MD

Motion Seq. #

⑥ NOI: 9/1/17

EJV-rev 11-04

⑦ All parties to respond to any outstanding demands within 30 days.

ENTER

HON. MARTIN SCHNEIER, JHO

Mahoney, F9/1/17
by W

At an IAS Part of the Supreme Court of the State of New York, held in and for the County of Kings at the Courthouse located at 360 Adams Street, Brooklyn, New York, on the ____ day of _____, 2017.

PRESENT:

Honorable

Justice

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ALISIA CHARTER and MARC AURELUS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER STEPHEN
ANDOLINA, POLICE OFFICER GRASSO, POLICE
SERGEANT RIOS, POLICE SERGEANT MICHAEL
LINDSLEY, JOHN DOES – Police Officers as yet
unidentified, REECE PYANKAROO and EVANS L.
PYANKAROO,

Defendants.

Index No. 1693/2016

-----X
UPON READING and filing the affirmation of **MARC BATTIPAGLIA, ESQ.**, dated the 7th day of June, 2017, and the exhibits annexed thereto, and all the pleadings and proceedings had herein,

LET the Plaintiff, **MARC AURELUS**, with the last known address at 110-47 Union Hall Street, Jamaica, NY 11433 and at Plaintiff's other property with the address 167 Brighton Avenue, Staten Island, New York 10301 and the Defendants represented by Zachary W. Carter located at 350 Jay Street, 8th Floor, Brooklyn, New York 11201 and represented by Martin & Fallon & Mulle located at 100 East Carver Street, Huntington, New York 11743 in this matter, show cause at the Supreme Court of the City of New York, County of Kings located 360 Adams Street, Brooklyn, York, on the ____ day of _____, 2017 at 9:30 A.M. in the forenoon of that day or as soon thereafter as counsel may be heard why an Order should not be made:

1. Allowing **RUBENSTEIN & RYNECKI, ESQS.** to withdraw and/or be relieved as counsel for the Plaintiff, **MARC AURELUS**; and
2. Any other further relief as this Court deems just and proper.

72 for 22
At an IAS Part of the Supreme Court of the State of New York, held in and for the County of Kings at the Courthouse located at 360 Adams Street, Brooklyn, New York, on the 9th day of June, 2017.

PRESENT:

Honorable: Reginald A. Boddie
Justice

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ALISIA CHARTER and MARC AURELUS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO, POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY, JOHN DOES – Police Officers as yet unidentified, REECE PYANKAROO and EVANS L. PYANKAROO,

Defendants.

ORDER TO SHOW CAUSE

MOOT

Index No. 1693/2016

KINGS COUNTY CLERK
STEPHEN L. BODDIE

-----X
UPON READING and filing the affirmation of **MARC BATTIPAGLIA, ESQ.**, dated the 7th day of June, 2017, and the exhibits annexed thereto, and all the pleadings and proceedings had herein,

LET the Plaintiff, **MARC AURELUS**, with the last known address at 110-47 Union Hall Street, Jamaica, NY 11433 and at Plaintiff's other property with the address 167 Brighton Avenue, Staten Island, New York 10301 and the Defendants represented by Zachary W. Carter located at 350 Jay Street, 8th Floor, Brooklyn, New York 11201 and represented by Martin & Fallon & Mulle located at 100 East Carver Street, Huntington, New York 11743 in this matter, show cause at the Supreme Court of the City of New York, County of Kings located 360 Adams Street, Brooklyn, York, on the 3 day of August, 2017 at 9:30 A.M. in the forenoon of that day or as soon thereafter as

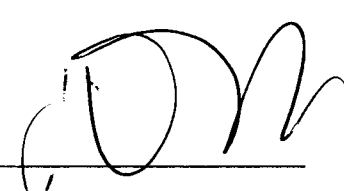
counsel may be heard why an Order should not be made:

1. Allowing **RUBENSTEIN & RYNECKI, ESQS.** to withdraw and/or be relieved as counsel for the Plaintiff, **MARC AURELUS**; and
2. Any other further relief as this Court deems just and proper.

Sufficient cause appearing therefore, let service of a copy of this Order to Show Cause together with supporting papers herein referred to be made on Plaintiff, **MARC AURELUS** by ~~regular and certified mail, return receipt requested~~ ^{personal} ~~service~~ to his last known address of ~~110-47 Union Hall Street, Jamaica, NY 11433~~ on or before the 21st day of July, 2017, ~~and at Plaintiff's other property with the address 167 Brighton Avenue, Staten Island, New York 10301 and to the Defendants represented by Zachary W. Carter located at 350 Jay Street, 8th Floor, Brooklyn, New York 11201 and Defendants represented by Martin & Fallon & Mulle located at 100 East Carver Street, Huntington, New York 11743 by regular mail and certified mail, return receipt requested on or before the~~ 21st day of July 2017, be deemed good and sufficient service thereof.

WHEREFORE, it is respectfully requested that the instant motion be granted in its entirety, permitting the firm of **RUBENSTEIN & RYBECKI, ESQS.** to withdraw as counsel for the Plaintiff, and for such other and further relief as this Court deems just and proper.

ENTER:



J.S.C.HON. LARRY MARTIN
JUSTICE OF THE SUPREME COURTKINGS COUNTY CLERK
FILED
2017 AUG 14 AM 9:07


**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ALISIA CHARTER and MARC AURELUS,

AFFIRMATION

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER STEPHEN
ANDOLINA, POLICE OFFICER GRASSO, POLICE
SERGEANT RIOS, POLICE SERGEANT MICHAEL
LINDSLEY, JOHN DOES – Police Officers as yet
unidentified, REECE PYANKAROO and EVANS L.
PYANKAROO,

Index No. 1693/2016

Defendants.

-----X

MARC BATTIPAGLIA, ESQ., an attorney duly admitted to practice before the Courts of
the State of New York, hereby affirms the following, pursuant to the penalties of perjury:

1. I am an associate of the law firm of **RUBENSTEIN & RYNECKI, ESQS.**, attorneys
for the Plaintiffs herein, and, as such, am fully familiar with the facts and circumstances of this matter
and all proceedings heretofore had herein between the Plaintiffs and Defendants and make this
affirmation based on review of the file herein.

2. That this affirmation is submitted seeking an Order allowing **RUBENSTEIN &
RYNECKI, ESQS.**, to withdraw and/or be relieved as counsel for the Plaintiff, **MARC AURELUS.**

3. That due to fundamental differences with the Plaintiff, the impossible task of
communicating with the Plaintiff and the *desire* of the Plaintiff to discontinue his action against
Defendants, the plaintiff's law firm **RUBENSTEIN & RYNECKI, ESQS.**, seeks to be relieved as
counsel.

4. Co-Plaintiff, **ALISIA CHARTER**, appeared for her Examination Before Trial on May
25, 2017. After said Examination Before Trial, our firm attempted to schedule the Examination Before
Trial of co-Plaintiff, **MARC AURELUS.**

Plaintiff, **MARC AURELUS**, had *abandoned* their marriage resulting in their physical separation.

6. Co-Plaintiff, **MARC AURELUS**, has not informed his wife, who he abandoned, of his current whereabouts and has taken measures to cut off all contact with his wife completely.

7. Co-Plaintiff, **MARC AURELUS**, owns property in Staten Island at the address of 167 Brighton Avenue, Staten Island, New York 10301, but upon information and belief the property is currently being rented by tenants of **MARC AURELUS** and he is not believed to be residing at this address either.

8. Co-Plaintiff, **MARC AURELUS**, is employed by the New York City Police Department which is headquartered at 1 Police Plaza, New York, New York 10038. Upon information and belief, these headquarters would be aware of where **MARC AURELUS** is assigned to work.

9. Your affirmant last communicated with the Plaintiff, **MARC AURELUS**, in May 2017 and June 2017 in which the Plaintiff, **MARC AURELUS**, informed our law firm that he no longer wishes to pursue an action on behalf of himself against the Defendants.

10. Again, your affirmant requested that the Plaintiff, **MARC AURELUS**, execute a document memorializing the same, but the Plaintiff, **MARC AURELUS**, refused this request and demanded that he have nothing to do with this matter any longer.

11. Plaintiff, **MARC AURELUS**, would not provide our offices with his new address, nor his email address nor a fax number as he does not want anyone to know his whereabouts. He is also no longer accepting any phone calls after my last communication.

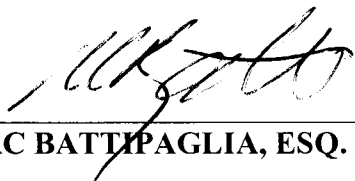
12. Again, co-Plaintiff, **MARC AURELUS**, communicated to your affirmant that he wants nothing to do with this action any longer but will not execute any documents to that effect and will not provide our offices to his current whereabouts making it impossible for the law firm to represent him or even communicate with him which will make Personal Service on the **MARC AURELUS** near impossible.

request that the Plaintiff execute a document memorializing that he no longer wishes to pursue an action and the Plaintiff refused declaring that he does not want anyone to know about his whereabouts.

14. Plaintiff's counsel cannot proceed in this matter, therefore it is respectfully requested that the Plaintiff's counsel be relieved as counsel in regards to Plaintiff, **MARC AURELUS**.

WHEREFORE, it is respectfully requested that the instant motion be granted in its entirety, permitting the firm of **RUBENSTEIN & RYNECKI, ESQS.**, to withdraw as counsel for the Plaintiff, and for such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York
June 6, 2017



MARC BATTIPAGLIA, ESQ.

NOTICE OF ENTRY

Index No.

1693

Year

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALISIA CHARTER and MARC AURELUS,

Dated,

Plaintiffs,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

-against-

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO,
POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY,
~~JOHN DOES - Police Officers as yet unidentified~~, REECE PYANKAROO and EVANS L.
PYANKAROO,

To

Defendants.

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

ORDER TO SHOW CAUSE and AFFIRMATION

of which the within is a true copy will be presented
for settlement to the Hon.

Print name beneath

one of the judges of the within named Court, at

RUBENSTEIN & RYNECKI ESQS.

on

Attorneys for

at

M.

Office and Post Office Address, Telephone

Dated,

16 COURT ST.

Yours, etc.

BROOKLYN, N.Y. 11241

RUBENSTEIN & RYNECKI ESQS.

(718) 522-1020

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

2017 JUN -8 AM 10:53

To

Attorney(s) for

Attorney(s) for

NYSCEF DOC. NO. 1

RECEIVED NYSCEF: 12/22/2020

Index Number: 16-1693

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

ATTORNEY(S) RUBENSTEIN & RYNECKI, ESQS
16 COURT ST., STE. 1717 BROOKLYN, NY 11241 |

PH: (718) 522-1020

Date Filed:

Court/Return Date: 8/3/2017

8/3/17

Alisia Charter and Marc Aurelus

Plaintiff

VS

The City of New York

Defendant

AFFIDAVIT OF SERVICE

STATE OF NEW YORK, COUNTY OF NASSAU, SS.:

Muataz Ahmad, being sworn says:

Deponent is not a party herein is over the age of 18 years and resides in the State of New York.

On June 29, 2017, at 7:36 PM at 167 Brighton Avenue Apt 2, Staten Island, NY 10301. Deponent served the within Order to Show Cause and Supporting Papers

The index number and the filing date of the action were endorsed upon the face of the papers so served herein.

On: Marc Aurelus, Plaintiff therein named, (hereinafter referred to as "subject").☐ #1 INDIVIDUAL

By delivering a true copy of each to said subject personally; Deponent knew the person so served to be the person described in as said subject therein.

☐ #2 ENTITY/CORPORATION/LLC/LLP

By delivering to and leaving with said individual to be who specifically stated he/she was authorized to accept service on behalf of the Corporation/Government Agency/Entity.

☒ #3 SUITABLE AGE PERSONBy delivering thereat a true copy of each to Woodley Aurelus () a person of suitable age and discretion. Said premises is subject's:[] actual place of business / employment [X] dwelling house (usual place of abode) within the state.☐ #4 AFFIXING TO DOOR

By affixing a true copy of each to the door of said premises which is subjects [] actual place of business / employment [] dwelling house (usual place of abode) within the state. Deponent was unable with due diligence to find subject or person of suitable age and discretion thereat having called thereat on

Address confirmation:

☒ #5 MAILINGOn June 30, 2017, service was completed by mailing a true copy of above document(s) to the above address in a 1st class, postpaid properly addressed envelope marked "Personal and Confidential" in an official depository under the exclusive care and custody of the United States Post Office in the State of New York.☒ #6 DESCRIPTIONSex: Male Color of skin: Brown Color of hair: Bald Age: 36-50
Height: 5ft9in-6ft0in Weight: 161-200 Lbs. Other Features:☐ #7 WITNESS FEES

The authorized witness fee and / or traveling expenses were paid (tendered) to the recipient in the amount of \$

☒ #8 MILITARY SERVICE

Deponent asked person spoken to whether the person to be served is currently active in the military service of the United States or of the State of New York, and was informed that said person is not.

☐ #9 OTHER

Sworn to before me on June 30, 2017

Patricia Rothfritz
NOTARY PUBLIC STATE OF New York
01R06055503, Qualified in Nassau County
Commission Expires February 26, 2019

Client's File No.: CHARTER

Process Server, Please Sign
Muataz Ahmad
Lic# 2034169
Job #: 1717675

RUBENSTEIN & RYNECKI ESQS.

NOTICE OF ENTRY

PLEASE take notice that the within is a true copy of a

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court at

M.

Attorneys, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

Index No. 1693 Year 2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALISIA CHARTER and MARC AURELUS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO,
POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY,
~~JOHN DOES - Police Officers not identified~~, REECE PYANKAROO and EVANS L.
PYANKAROO,

Defendants.

~~ALISIA CHARTER~~ OF SERVICE

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone
16 COURT ST.
BROOKLYN, N.Y. 11241
(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for

1600 - Manhattan Exchange Inc, NYC 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ALISIA CHARTER and MARC AURELUS,

Plaintiffs,

AFFIDAVIT OF
SERVICE

INDEX#1693/16

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER STEPHEN
ANDOLINA, POLICE OFFICER JACLYN GRASSO,
POLICE OFFICER JOSHUA RIOS, POLICE OFFICER
MICHAEL LINDSLEY, JOHN DOES – Police Officers as
yet unidentified, REECE PYANKAROO and EVANS L.
PYANKAROO,Defendants.
-----XSTATE OF NEW YORK)
)ss.:
COUNTY OF KINGS)

SUZANNE VALENTINE being duly sworn, deposes and says:

Deponent is not a party to the action, is over 18 years of age and resides in
Brooklyn, New York.On June 28, 2017, deponent served the **ORDER TO SHOW CAUSE,**
AFFIRMATION AND EXHIBITS upon:**MARTIN, FALLON & MULLE**
100 East Carver Street
Huntington, NY 11743**ZACHARY W. CARTER, ESQ.**
350 Jay Street, 8th floor
Brooklyn, New York 11201the address designated by said attorney(s) for that purpose by depositing a true copy of
same enclosed in a post-paid properly addressed wrapper, via first-class mail, certified
mail (PD Form #3800) with return receipt requested (PD Form 3811) in a post office -
official depository under the exclusive care and custody of the United States Postal
Service within the State of New York.
SUZANNE VALENTINESworn to before me this
day, July 5, 2017
NOTARY PUBLICJACK JACILLA
NOTARY PUBLIC, State of New York
No. 01JA4750607
Qualified in Kings County
Commission Expires Nov. 30, 2017KINGS COUNTY CLERK
FILED
2017 AUG 14 AM 9:07NOTARY PUBLIC
JUL 11 PM 3:48
KINGS COUNTY CLERK

NOTICE OF ENTRY

PLEASE take notice that the within is a (certified) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on

M.

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address

16 COURT ST.

BROOKLYN, N.Y. 11241

To

Attorney(s) for

Index No.

1693

Year

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALISIA CHARTER and MARC AURELUS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER JACLYN GRASSO, POLICE OFFICER JOSHUA RIOS, POLICE OFFICER MICHAEL LINDSLEY, JOHN DOES - Police Officers as yet unidentified, REECE PYANKAROO and EVANS L. PYANKAROO,

Defendants.

AFFIDAVIT OF SERVICE

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone

16 COURT ST.

BROOKLYN, N.Y. 11241

(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for

RUBENSTEIN & RYNECKI ESQS.

SLED - Stepankovskiy
RECEIVED NYSCEF 12/22/2016
City# 2016-005088

At an I.A.S. Trial Term, Part 22 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 28 day of November 2017

P R E S E N T :

HON. MARTIN SCHNEIER, JHO
Justice

Alisia Charter

Plaintiff(s)

Cal. No. 7

Index No. 1693/2016

- against -

City of New York, et al.

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- ① Co-Defendants Pyankarous EBTs on 3/1/18
- ② PO Andolina and PO Grasso EBTs on 3/7/18
- ③ Sgt Rios and Sgt Lindsley EBTs on 3/8/18
- ④ Plaintiff to provide copy of video within 30 days (previously provided but not functional).

For Clerks use only

MG

MD

Motion Seq. #

Further CC: 7/10/18
 NOI: 9/14/18

ENTER

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

KINGS COUNTY CLERK
FILED

2018 JAN 11 AM 8:23

[Signature] Kurenstun + Lymda
 City By Kurenstun

CS-R. Siegel

FILED *Slepian*
RECEIVED NYSCEF: 11/27/2016
City # 2016-005088At an L.A.S. Trial Term, Part ² of the Supreme
Court of the State of New York, held in and for the
County of Kings, at the Courthouse, located at
Civic Center, Borough of Brooklyn, City and State
of New York, on the 24 day of July 20 18

P R E S E N T :

Hon.

~~Schneier~~ *MARTIN SCHNEIER*Justice
HON. MARTIN SCHNEIER, JHO*Alizia Charter*

Plaintiff(s)

Cal. No.

8

Index No.

1693/2016

- against -

City of New York, et. al.

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- ① Co-defendants Pyankaroos EBTs on 10/22/18
- ② PO Andolina and PO Grasso EBTs on 10/29/18
- ③ Sgt RIOS and Sgt Lindsley EBTs 11/5/18

Further CC: 3/5/19
NOI: 5/3/19

For Clerks use only

MG

MD

Motion Seq. #

E N T E R

J.S.C.

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

2018 AUG - 1 AM 9:25

KINGS COUNTY CLERK
FILED*A.S.*
*City**Rubenstein-Pyankaroos*
*by K Vromer**Marlin Tallen*
by Michael Young

FILED - Stepankovsky
City # 2016-005088
KINGS COUNTY CLERK
FILED

2019 MAR 13 AM 8:18

At an I.A.S. Trial Term, Part 2 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 5 day of March 20 19

P R E S E N T :

Hon. Boddie

Justice

Alisia Charter

Plaintiff(s)

Cal. No. 8

Index No. 1693/2016

- against -

City of New York, et. al.

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- ① City EBTs to be held on 6/17/19 and 6/24/19.
- ② Co-Defendants EBTs to be held on 7/1/19.

For Clerks use only

MG

MD

Motion Seq. #

Further CC: 10/15/19

NOI: 12/13/19

ENTER

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

A. S.
City

M. Dean
COA

Rubyn H.

At an I.A.S. Trial Term, Part ²² of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 15 day of October 20 19

P R E S E N T

Hon.

Lizette Colon

Justice

Alisia Charter

Plaintiff(s)

Cal. No.

8

Index No.

1693/2016

- against -

City of New York, et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

1. Sgt. Grasso EBT on 1/23/20
2. PO Andolika EBT on 1/23/20
3. Sgt. Lindsley EBT on 1/29/20
4. Sgt. Prial EBT on 1/29/20
5. CO-D Pyankarou on 2/5/20

Further GC
NOT: 6/26/20

For Clerks use only

MG

MD

Motion Seq. #

EJV-rev 11-04

ENTER

Hon. Lizette Colon J.S.C.
J.S.C.

2019 OCT 17 AM 9:15

KINGS COUNTY CLERK
FILED

muf

mufm-RJ

Lizette Colon + Prieda
by K. ColonCity
Stephanie D. Johnson

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGSKINGS COUNTY CLERK
FILED
2020 MAR -9 ID: 44

ALISIA CHARTER and MARC AURELUS,

Plaintiffs,

NOTICE OF MOTION

- against -

Index No.:1693/2016

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER STEPHEN
ANDOLINA, POLICE OFFICER GRASSO, POLICE
SERGEANT RIOJ, POLICE SERGEANT MICHAEL
LINDSLEY, JOHN DOES-Police Officers as yet
unidentified, REECE PYANKAROO and EVANS L.
PYANKAROO,

Law Dept No.: 2016-005088

Defendants.

MOTION BY:

Rubenstein & Rynecki, Esqs., attorneys for the plaintiffs

**DATE, TIME & PLACE
OF HEARING:**April 1, 2020, 9:30am, at the Supreme Court, Kings County
360 Adams Street, Brooklyn, New York, Central Compliance
Part.**RELIEF REQUESTED:**

- A. Striking the Answer of the defendants Reece Pyankaroo, Evans L. Pyankaroo and Police Sergeant Michael Lindsley for repeated failure to appear for a court-ordered deposition, or in the alternative,
- B. Compelling defendants Reece Pyankaroo, Evans L. Pyankaroo and Police Sergeant Michael Lindsley to appear for a deposition on a date certain, or in the alternative,
- C. Precluding defendants Reece Pyankaroo, Evans L. Pyankaroo and Police Sergeant Michael Lindsley from testifying at the time of trial for their willful and frivolous conduct in failing to appear for a court-ordered deposition; and
- D. Compelling defendant The City of New York to provide the items sought in plaintiff's Post EBT Demands dated January 31, 2020; and
- E. Extending plaintiff's time to file a Note of Issue, and for such other and further relief as the Court deems just and proper.

KINGS COUNTY
SUPREME COURT
MOTION SUPPORT
APPROVED
DATE**SUPPORTING PAPERS:**Affirmations of Harper A. Smith, Esq., dated March 6, 2020,
with exhibits annexed thereto.**ANSWERING AFFIDAVITS:**To be served seven (7) days prior to the return date of this
motion.Dated: Brooklyn, New York
March 6, 2020

PC Date: 10/17/16

Prior CC Dates: 03/21/17, 11/28/17, 07/24/18, 03/05/19, 10/15/19

Current NOI Date: _____

At the City/TA Discovery Part of The Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse located at 360 Adams Street, Brooklyn New York on the 17 day of November 20 20.

PRESENT:

HON. LIZETTE COLON, A.J.C. HON. LAWRENCE KNIPEL
SUPREME COURT JUSTICE

CAL. NO. _____

CITY/TA COMPLIANCE ORDER Motion # 02

INDEX NO. 001693/2016

ALISIA CHARTER and MARC AURELUS

Plaintiff(s),

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER STEPHEN ANDOLINA, POLICE OFFICER GRASSO,
POLICE SERGEANT RIOS, POLICE SERGEANT MICHAEL LINDSLEY,
JOHN DOES - Police Officers as yet unidentified, REECE PYANKAROO And
JOHN DOE, fictitious name intended for the drive of the motor vehicle

Defendant(s)

☐ ON DEFAULT
☒ ON CONSENT
☐ AFTER ORAL ARGUMENT

The following papers number 1 to _____ read on this motion

Papers Numbered _____

Notion of Motion-Order to Show Cause _____

And Affidavits (Affirmations) Annexed _____

Answering Affidavits (Affirmation) _____

Reply Affidavit (Affirmation) _____

Affidavit (Affirmation) _____

Pleading-Exhibits _____

Stipulations-Minutes _____

Filed Papers _____

Mo. Seq. 2

Plaintiff's Motion to Strike, which is currently returnable 11/18/2020, is resolved as follows: Officer Michael Lindsley's deposition to be conducted 1/28/2021.

Plaintiff should file a Note of Issue on or before 4/9/2021.

Unjustified failure of any party to comply with the terms of this Order will result in sanctions.

For Clerk's Use Only

MG _____ Retracked:
MD _____ ☐ Standard
Motion Seq.# _____ ☐ Complex

ENTER:

HON. LIZETTE COLON, A.J.C.

HON. LAWRENCE KNIPEL
SUPREME COURT JUSTICE

PRINT FIRM NAME

PRINT ATTORNEY NAME

ATTORNEY FIRM Rubenstein & Rynecki

by Chad Russell, Esq.

FOR PLAINTIFF(S)

Alisia Charter and Marc Aurelius

ATTORNEY FIRM Corporation Counsel

by Brendaliz Minaya Ruiz, Esq.

FOR DEFENDANT(S)

The City of New York, et. al

ATTORNEY FIRM _____

by _____

FOR DEFENDANT(S)

ATTORNEY FIRM _____

by _____

FOR DEFENDANT(S)

CDP Motion 3-2020

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X

Alisia Charter, et al.

Plaintiff(s)/Petitioner(s),

Index No. 1693/2016

- against -

The City of New York, et al.

**STIPULATION AND
CONSENT TO E-FILING**

Defendant/Respondent(s).

-----X

We the undersigned, counsel in good standing representing parties in this matter, counsel admitted pro hac vice, and/or a self-represented party in this matter, hereby stipulate and consent to the use of the New York State Courts Electronic Filing System ("NYSCEF") in this matter. We agree to be bound by the rules governing the NYSCEF System (Section 202.5-b of the Uniform Rules for the Trial Courts) and the procedures of the NYSCEF system as reflected in the *User's Manual* approved by the Chief Administrator of the Courts and posted on the NYSCEF website.

Any of the undersigned who indicate below that they are not currently an authorized e-filing user in the NYSCEF System understand that they must first obtain a user ID and password before they may file any documents with NYSCEF and that they may do so by accessing the Create an Account button on the NYSCEF Login screen (<https://iapps.courts.state.ny.us/nyscef/Login>). They also understand that once they receive their credentials, their primary e-mail addresses, listed below, will be used for service of documents.

Dated: 12/21/20Registered User: ☒ Yes ☐ NoAttorney ☒ Pro Hac ☐ Pro Se ☐Registered User: ☒ Yes ☐ NoAttorney ☒ Pro Hac ☐ Pro Se ☐_____
Signature_____
SignatureRobert Mijuca
Print NameEunice W Lee
Print NameAlisia Charter
Attorney for (Identity of Parties)The City of New York, et. al
Attorney for (Identity of Parties)3014693
UCS Attorney Registration #
Rubenstein & Rynecki
Firm Name5826102
UCS Attorney Registration #
Corporation Counsel
Firm Name16 Court Street, Suite 1717
Address100 Church Street
AddressBrooklyn, New York 11241New York, New York 10007718-522-1020
Phone #(646) 988-0365
Phone #rubrynlawecf@gmail.com
E-Mail
(Primary)eulee@law.nyc.gov
E-Mail
(Primary)rmijucarubrynlaw@gmail.com
2d E-Mail_____
2d E-Mail

(Optional)

(Optional)

(Optional) 3d E-Mail

(Optional) 3d E-Mail

Registered User: ☐ Yes ☐ No
Attorney ☐ Pro Hac ☐ Pro Se ☐

Registered User: ☐ Yes ☐ No
Attorney ☐ Pro Hac ☐ Pro Se ☐

Signature

Signature

Print Name

Print Name

Attorney for (Identity of Parties)

Attorney for (Identity of Parties)

UCS Attorney Registration #

UCS Attorney Registration #

Firm Name

Firm Name

Address

Address

Phone #

Phone #

E-Mail
(Primary)

E-Mail
(Primary)

2d E-Mail
(Optional)

2d E-Mail
(Optional)

3d E-Mail
(Optional)

3d E-Mail
(Optional)

6/5/13